IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
PRINCIPAL BENCH

Item No. 1
CA(CAA)- 35(PB)/2019

IN THE MATTER OF:
EAST BENGAL INVESTMENT PRIVATE LIMITED & ORS.

...Petitioner

IN THE MATTER OF NEW CA-44/2022

Sashi Bagga ....Applicant

Vs.

1. **East Bengal Investment Private Limited** ...Respondent No. 1
2. **HLKR Trading Co. Private Limited** ...Respondent No.2
3. **Unik Springs Private Limited** ...Respondent No. 3
4. **Sadjyoti Traders Private Limited** ...Respondent No. 4
5. **Sungrowth Coke Private Limited** ....Respondent no. 5
6. **Mr. Amarjeet singh Chawla** ....Respondent No.6
7. **Mr. Sarabjeet Singh Chawla** ...Respondent No. 7

Order under Section 230, 231-232

Order delivered on 17.02.2022

CORAM:
JUSTICE RAMALINGAM SUDHAKAR
HON'BLE PRESIDENT

SH. AVINASH KUMAR SRIVASTAVA
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant: Mr. Rakesh Kumar. Ms. Preeti Kashyap. Mr. Ankit Sharma. Counsels for the Applicant

For the Respondent: Advs. Manoj Kumar Garg, Pulkit Atal,

-Sd-

ORDER

New CA-44/2022

a) Allow the impleadment of the applicant in the present petition

b) Set aside/modify Order dated 11.05.2020, passed by the Hon'ble Tribunal in present petition of Merger involving Respondent No. 1 to Respondent No.5

c) Take on record the objection filed by the Applicant with respect to sale of the said property and pending registration of the sale deed

d) Pass any such/further Order as this Hon'ble Tribunal may deems fit.

Mr. Ankit Sharma Ld. Counsel for the Petitioner has not served a copy of the application on the Ld. Counsel for the respondent Company Mr. Manoj Garg. Before seeking to issue notice the petitioner in this case was a 3rd party, who wants implead in the case filed under Section 230-232 of the Companies Act, 2013 for sanction of Scheme of Amalgamation.

No prior notice has been issued to the Ld. Counsel for the Company, who appears in the main matter CA(CAA)-

-Sd-

35(PB)/2019. The petitioner counsel, Mr. Ankit Sharma has to first serve the copy to the Ld. counsel in the main case, before even he wants to seek any further direction and notice in this matter.

At his request post this matter on 17.03.2022.

-Sd-

(RAMALINGAM SUDHAKAR)
PRESIDENT

-Sd-

(AVINASH KUMAR SRIVASTAVA)
MEMBER (TECHNICAL)

RAKHI - 17.02.2022